CUSHMAN & WAKEFIELD

TERMS & CONDITIONS OF ORDER

Client: [Client Name]
Purchaser: Cushman & Wakefield U.S., Inc.
Vendor/Contractor: [Vendor Name]

Vendor/Contractor should DIRECT ALL PAYMENT INQUIRES TO:

1. Upon receipt of this Purchase Order, Vendor/Contractor agrees to the terms and conditions incorporated herein by reference.

2. ACCEPTANCE: Vendor/Contractor's notification to Cushman & Wakefield of acceptance, commencement of work on the goods or Services subject to this Purchase Order issued hereunder or shipment of such goods, whichever occurs first, shall be deemed an acceptance of this Purchase Order. "Contract" shall mean a Purchase Order ("PO") issued by Cushman and Wakefield containing these Terms and Conditions, which shall include any additional written agreement which has been duly executed by the parties hereto. This Contract, and any documents referenced and incorporated herein, including all terms and conditions on the face of the PO, sets forth the entire agreement of the parties with respect to the subject matter contained herein. Unless the parties have previously executed a separate written Agreement, Statement of Work, Order Form or Service Addendum ("Ordering Document") for the Client account, where applicable, this Contract shall be deemed to cancel and supersede any prior agreements, written or oral between the parties. Any proposal of additional or different terms or any attempt by Vendor/Contractor to vary in any degree any of the terms or conditions of this offer in Vendor/Contractor's acceptance is hereby objected to and rejected, but such proposals shall not operate as a rejection of this offer unless such variances are in the terms of the description, quantity, price, or delivery schedule of the goods or Services, but instead shall be deemed a material alternation thereof and this offer shall be deemed accepted by Vendor/Contractor without such additional or different terms. If this Purchase Order shall be deemed an acceptance of a prior offer by Vendor/Contractor, such acceptance is limited to the express terms and conditions set forth in the document. Additional or different terms or any attempt by Vendor/Contractor to vary in any degree any of the terms and conditions of this Purchase Order shall be deemed material and are objected to and rejected, but this Purchase Order shall not operate as a rejection of the Vendor/Contractor's offer unless it contains variances in terms of the description, quantity, price, or delivery schedule of the goods or Services.

3. Unless otherwise directed by the Ordering Document, submit your monthly invoice with this Purchase Order number indicated thereon. AVOID PARTIAL INVOICES. In a manner and form reasonably acceptable to Purchaser, Vendor/Contractor shall provide correct and complete invoices to Purchaser. Payment shall be due within ninety (90) days of the date of receipt of such invoice, unless otherwise stated in an Ordering Document. Purchaser shall not be liable for payment of any invoice amount for Services or expenses not billed in a timely manner, and in no event for fees for Services more than ninety (90) days after such is performed or incurred as the case may be. Vendor/Contractor agrees that it will not be paid for the Services until and unless Client furnishes funds to Purchaser specifically designated for payment of the obligations due or to become due to Vendor/Contractor hereunder; in the event Client shall fail or refuse for any reason whatsoever to provide Purchaser with funds sufficient to pay the compensation due to Vendor/Contractor hereunder, then Purchaser will not be able to make any payment of such compensation to Vendor/Contractor, and Vendor/Contractor shall have no claim for payment against Purchaser. In the event that Client becomes subject to a bankruptcy or insolvency proceeding and any fees and costs paid by Client to Purchaser (which formed the basis of Purchaser paying Vendor/Contractor) are avoided and recovered pursuant to 11 U.S.C. Section 547, or similar state insolvency law, Vendor/Contractor shall be required to refund the fees and costs Vendor/Contractor received from Purchaser on account of such avoided transfer within 30 days after Purchaser provides Vendor/Contractor with proof of such payment by Purchaser to Client's bankruptcy estate. If an amount less than the full amount of the alleged preferential payment is avoided, such as by way of settlement or partial defense, Vendor/Contractor's refund obligations to Purchaser shall be limited to Vendor/Contractor's pro rata share of any such avoided transfer(s).

4. All prices include F.O.B. delivery to building, applicable taxes and insurance, supervision, overhead and profit, unless specifically stated otherwise on this Purchase Order. Purchaser, on behalf of Client, shall have no obligation to reimburse costs and expenses (if any) incurred by Vendor/Contractor in connection with this Purchase Order, unless such costs and expenses have been approved in written quote from Vendor/Contractor by Purchaser. All goods delivered must be signed for by the Client representative of the building.

5. PREPAY ALL FREIGHT SHIPMENTS.

6. No orders are to be accepted unless in writing or confirmed in writing. Purchaser, upon Client's request or for any reason, may cancel or terminate this Purchase Order upon written notice to Vendor/Contractor at any time, without cause or penalty and shall only be liable to Vendor/Contractor for prices, costs, expenses, and fees incurred for Services rendered through the effective date of cancellation or termination.

7. The issuance of this Purchase Order does not obligate the Purchaser to accept subsequent orders or any changes in the performance of the work. No claim for any extra work by the Vendor/Contractor will be allowed except upon complete compliance with a subsequent approved Purchase Order from Purchaser.

8. The receipt of each order must be promptly acknowledged and delivery or performance date must be stated in such acknowledgment. Orders not so acknowledged shall give Purchaser the right to cancel at its election.

9. Any Purchase Order not accepted must be marked as such and returned to the Purchaser within three (3) days after issuance of it.

10. Purchaser may assign this Purchase Order without approval of Vendor/Contractor, but Vendor/Contractor may not assign this Purchase Order or sub-contract any portion of the work without Purchaser's prior written approval. Client is a third party beneficiary of this Purchase Order.

11. Contents of each package must be stated on a packing slip enclosed therein.

12. All material to be furnished or work to be performed shall be done in accordance with the plans, specifications and conditions identified in any scope of work or exhibit hereunder, or otherwise required at the building and must (regardless of specifications) comply with all laws, ordinances, rules, regulations and requirements of Board of Underwriters, all Municipal and State Government authorities and Labor Unions having jurisdiction. Should there be any violations of the foregoing in any part of the materials or work to be furnished under this order, and the Vendor/Contractor on accepting this order does not call the attention of the Purchaser to this fact, then the Vendor/Contractor, at its own expense, will furnish all labor and materials to correct such violations.

13. The Vendor/Contractor agrees to repair, replace or make good any damages, defects or faults resulting from defective work that may appear within one year after Purchaser's acceptance of the materials or work, or for the agreed period of warranty as may be defined in any signed Ordering Document. Written guarantees if requested are to be furnished by the Vendor/Contractor. If defective work or material is installed or furnished and allowed to remain, the Purchaser is to be allowed the difference in value between cost of work installed and cost of work specified.

14. The Vendor/Contractor will furnish all labor, materials, tools, scaffolding, rigging, hoisting, etc., required to carry on the work in the best and most expeditious manner and protect its and other work, and will do all necessary cutting and patching and also remove and replace any interfering work, for the proper installation of its work. Vendor/Contractor shall perform work so as not to unreasonably interfere with Purchaser or Client's operation of the Property or business operations of any tenant or occupant of the buildings in which work is being performed. Vendor/Contractor agrees to perform work in a good, workmanlike and timely manner, using reasonable care and skill in conformity with this Purchase Order and the highest standards in Vendor/Contractor's industry, and as reasonably acceptable to Purchaser and Client, in accordance with Client's building operation rules and regulations Vendor/Contractor shall be solely responsible for penalties for, and costs of labor and material, to correct any work or Services as a result of any breach of this Purchase Order or violation of any applicable laws.

15. The Vendor/Contractor will procure and pay for all necessary permits in conjunction with its work.

16. The Vendor/Contractor shall commence and complete work and materials at such times as are required by the Purchaser. Time is of the essence of this agreement. Unless the Vendor/Contractor notifies the Purchaser (in writing), no delay shall be considered for an extension of time. If at any time, the Purchaser shall consider that proper progress is not being made, the Purchaser, upon three day's written notice by registered mail, shall have the right to employ proper and sufficient men and material to proceed with the work, and charge all costs incurred in this connection to the account of the Vendor/Contractor, in the meantime, stopping any further payments until the work is completed.

17. Vendor/Contractor shall, throughout the Term of the Contract and for a period of three (3) years thereafter, at its cost and expense, carry and from time to time renew, the insurance set forth below. Notwithstanding the foregoing, the provisions below may change subject to the requirements of each Client. Any such changes will be set forth in the applicable Ordering Document.

Vendor shall, throughout the Term of the Agreement and for a period of three (3) years thereafter, at its cost and expense, carry and from time to time renew, the insurance set forth below. Notwithstanding the foregoing, the provisions below may change subject to the requirements of each Client. Any such changes will be set forth in the applicable Ordering Document.

(A) Commercial General Liability Insurance in the minimum amount of **$2,000,000,** per occurrence, **$5,000,000** aggregate which shall apply on a **per project or per location** basis, including Bodily Injury and Personal Injury Coverage (Mental Anguish, False Arrest, Detention or Imprisonment, Malicious Prosecution, Libel, Slander, Defamation or violation of Right of Privacy, Wrongful Entry or Eviction or other Invasion or Right of Private Occupancy), broad form Property Damage (including broad form contractual liability coverage for Contractor's indemnification as provided for in the Agreement), Premises Operations, Products/Completed Operations Hazard, and Independent Contractors;

(B) Worker's Compensation Insurance in statutory amounts in the state in which Services are to be performed which shall contain a waiver of subrogation in favor of Purchaser and Client;

(C) Employer's Liability Insurance in the minimum amount of **$1,000,000** per accident and disease**;**

(D) Commercial Automobile Liability Insurance covering owned, non-owned and hired automobiles, trucks and trailers used by Contractor in the minimum amount of **$1,000,000** combined single limit for Bodily Injury and Property Damage;

(E) In the event that Contractor is to have access to, or is responsible for handling Purchaser's or Client's funds, responsible for any oversight of or collection of any money or securities form third parties, and/or has unsupervised access to documents, property or equipment, a Fidelity Bond or Commercial Crime coverage with blanket coverage for clients' property on a blanket basis covering Contractor and its personnel, in an amount of **$5,000,000** or as Purchaser or Client shall reasonably request, having such deductible as shall be determined from time to time by Purchaser or Client, and naming Purchaser and Client as a loss payee;

(F) Non-occupational and Disability Insurance, if required by the State where the Property is located;

(G) In the event that Contractor is to park motor vehicles as part of the Services herein, Garage Keepers Legal Liability Insurance in an amount of not less than **$5,000,000**, which insurance may be subject to a deductible provision not to exceed $250 per occurrence;

(H) In the event Contractor is to operate a parking garage as part of the Services herein, Garage Liability Insurance in an amount of not less than **$5,000,000** combined single limit.

(I) Umbrella/Excess Liability providing coverage excess of the required employer's liability, commercial general liability, commercial automobile liability, garage keepers legal liability (if applicable to scope), and garage liability (if applicable to scope) insurance policies in a minimum amount of **$10,000,000** unless otherwise approved in writing by Purchaser or Client. Limits may be satisfied through a combination of primary and excess policies.

(J) Professional Liability. If Contractor's provision of Services includes the provision of any professional Services, including but not limited to consultative, design, or development Services or the provision of any advice or other professional Services, then Contractor will additionally maintain professional liability insurance, with coverage limits of US **$5,000,000** per claim. If coverage is written on a claims-made form, the retroactive date must be on or before the execution date of this Agreement and be maintained for a period of 7 years after the termination or expiration of this Agreement.

(K) In the event Contractor has access to Purchaser or Client systems, facility data, or has access to any personal or sensitive data of Purchaser or Client while performing Services, Cyber/Network Security Liability and Data Privacy Insurance with limits of at least $5,000,000 per claim covering network security, ransomware, privacy liability, electronic media and data breach. If coverage is written on a claims-made form, the retroactive date must be on or before the execution date of this Agreement, and be maintained for a period of 7 years after the termination or expiration of this Agreement.

(L) Property insurance against risks of physical damage or loss to personal property or equipment belonging to Contractor and/or its employees in amounts sufficient to replace such personal property in the event of loss.

(M) Any other insurance required to be maintained during the performance of the Services under this Agreement pursuant to the terms of any ground or other underlying lease(s) affecting the real property upon which the Services are to be performed (it being understood that Contractor shall comply with the insurance requirements of any such ground or other underlying lease(s), including, without limitation, to the extent such requirements require greater coverage levels than expressly required herein).

(N) Pollution Liability. If Vendor's provision of Services involves demolition, excavation, asbestos, lead, mold, pollutant abatement or any other activities which involve the potential for the release of, or an exposure to hazardous materials, as such term is defined under federal, state or local law, Vendor will maintain pollution liability insurance for claims arising out the discharge, dispersal, release or escape of any irritant or contaminant into or upon land, any structure, the atmosphere, watercourse, or body of water, including ground water, including coverage for on- and off-site clean-up costs, with limits of no less than **$5,000,000** per occurrence and **$5,000,000** aggregate. If coverage is written on a claims-made form, the retroactive date must be on or before the execution date of this Agreement, and be maintained for a period of 7 years after the termination or expiration of this Agreement.

All such insurance shall be issued by reputable insurance companies licensed to do business in the state where the Property is located, have a Best's rating of not less than A-/VII, and otherwise be satisfactory to Purchaser and Client. All of such policies shall be on an "occurrence basis" (with the exception of Professional Liability, Cyber/Network Security and Data Privacy Liability, and Pollution Liability), shall have commercially reasonable deductibles, and Purchaser (and Purchaser's subsidiaries and Affiliates who are performing Services at the Property), Client (and Client's subsidiaries and affiliates) and any additional parties requested by Purchaser or Client shall be named as additional insureds on all of Contractor's policies required herein (except Workers' Compensation and Employer's Liability)as follows: Cushman & Wakefield U.S. Inc., and its affiliates, and the applicable Client and Client affiliates identified in the attached Ordering Document. The policies cannot contain any provision that would preclude coverage for suits/claims brought by an additional insured against a named insured.

Certificates in customary form, evidencing that premiums for the foregoing insurance have been paid, shall be delivered by Contractor to Purchaser simultaneously with Contractor's execution of the Master Agreement and prior to Contractor performing any Services hereunder. Within thirty (30) days prior to expiration of such insurance similar updated certificates shall be delivered by Contractor to Purchaser evidencing the renewal of such insurance, together with evidence of the payment of the premium. All certificates of insurance must contain a definite provision that if the policies of insurance evidenced by such certificates are canceled or changed during the periods of coverage as stated therein, in such a manner as to affect the coverage afforded by such policies, written notice will be mailed to Purchaser and Client by certified mail and return receipt requested at least thirty (30) days prior to such cancellation or change. In addition, any such changes or cancellations shall also be updated by Contractor in Cushman & Wakefield supplier management systems as stipulated by Cushman & Wakefield authorized representatives.

Contractor shall procure an appropriate clause in, or endorsement on, each of its policies whereby the insurer waives subrogation or consents to a waiver of the right of recovery against Purchaser (and Purchaser's subsidiaries and Affiliates who are performing Services at the Property), Client, and any additional parties requested by Purchaser or Client, and having obtained such waiver of subrogation or waiver of the right of recovery, Contractor hereby agrees that it will not make any claim against or seek to recover from Purchaser (and Purchaser's subsidiaries and Affiliates who are performing Services at the Property), Client, and/or any additional parties requested by Purchaser or Client, for any loss or damage from any risk or peril of the type covered or coverable by any insurance policy actually carried by or required to be carried by Contractor pursuant to the terms of the Agreement, including the amounts of any deductible or self-insured retention Contractor may carry.

Contractor's insurance policies shall be primary and noncontributory, and any such insurance maintained by Purchaser and/or Client shall be secondary and non-contributory and excess over any applicable insurance required to be maintained by Contractor hereunder. Any Umbrella/Excess policies maintained by Contractor, whether or not required in this agreement, shall be first tier Umbrella/Excess coverage above the primary Commercial General Liability coverage afforded to Purchaser, Client, or any other additional insureds required in this Agreement and not concurrent with or excess to any other valid and collectible insurance available to Purchaser, Client, or any other additional insureds required in this Agreement, whether provided on a primary or excess basis (i.e., all Contractor's policies shall vertically exhaust and will not seek any contribution from Purchaser or Client's insurance, whether primary or excess, or look to horizontally exhaust).Contractor shall be solely obligated, and Purchaser or Client shall bear no obligation, for the payment of any deductibles, retentions, co-pays, or other charges applicable to any such insurance. Contractor's purchase and maintenance of the insurance required herein shall not limit or reduce Contractor's liability to Purchaser or Client in connection with any work and any project, nor limit Purchaser's or Client's rights and remedies against Contractor in any respect.

18. INDEMNIFICATION.

(a) Contractor shall, to the fullest extent permitted by law, indemnify and hold harmless Purchaser, its Clients and their respective subsidiaries, Affiliates, shareholders, directors, officers, partners and employees (the "**Purchaser Indemnitees**") from and against any and all liability, claims, demands, losses, damages, expenses (including attorneys'

fees and investigation costs), payments, recoveries and judgments in connection therewith, to the extent directly or indirectly arising out, of or caused in any manner, in connection with the performance of the Services hereunder including by (i) any acts or omissions of Vendor/Contractor, its Affiliates and Vendor/Contractor Personnel; (ii) the performance or failure to perform any Services under the Contract; (iii) the breach of any Confidentiality obligations, representation or warranty or covenant or condition set forth in the Contract by Vendor/Contractor, its Affiliates or Vendor/Contractor Personnel; (iv) the use of any Purchaser's tools or equipment by Vendor/Contractor, its Affiliates or Vendor/Contractor Personnel; (v) a breach of any obligation for which Vendor/Contractor is responsible as employer or contractor of Vendor/Contractor Personnel, including (as examples): (A) Vendor/Contractor's employment of one or more of Vendor/Contractor's employees; (B) any claim alleging that any of the Purchaser Indemnitees should be deemed the "employer" or "joint employer" of any Vendor/Contractor Personnel, and (C) any claim by any member or former member of Vendor/Contractor Personnel, alleging unfair dismissal, breach of contract, discrimination on the grounds of sex, race, disability, sexual orientation, religion or belief, age or equal pay; (vi) the violation of any applicable law, order, or regulation by Vendor/Contractor, its Affiliates or Vendor/Contractor Personnel; (vii) any claim arising from or relating to work-related injuries of Vendor/Contractor or Vendor/Contractor Personnel (including the employees, agents, subcontractors and suppliers of Vendor/Contractor Personnel), or (viii) any property or injury to persons including death resulting therefrom.

(b) In addition, Vendor/Contractor shall indemnify, hold harmless and defend, at its sole cost and expense, the Purchaser Indemnitees from any loss, damage, expense (including attorneys' fees and costs), payment, recovery and judgment arising out of any claim or threatened claim, alleging that any Services furnished hereunder infringe upon or violate a patent, copyright, trademark, trade secret or other proprietary right of any third party. Purchaser, at its sole cost and expense, shall have the right to be represented in any such action or proceeding by independent counsel of Purchaser's own choice. Vendor/Contractor's liability under this **subsection (b)** shall survive the expiration or termination of the Contract, but this shall not be construed to mean that Vendor/Contractor's liability does not survive as to other provisions of the Contract.

(c) Contractor shall, at its own expense, defend any and all actions brought against Purchaser based upon any of the foregoing and shall pay all attorneys' fees and all other expenses, and promptly discharge any judgments, settlements or compromises arising therefrom. No third party claim or action may be settled or compromised by Vendor/Contractor without Purchaser's prior written consent, unless the settlement or compromise includes a release of all claims against Purchaser and Client as applicable by the party bringing the claim or action; and Purchaser will have the right at its sole expense to participate in the legal proceeding with counsel of its own choosing. Purchaser will assist and cooperate in the defense as reasonably requested by Vendor/Contractor, at Vendor/Contractor's expense.

(d) Contractor's liability under this **Section 18 (Indemnification)** shall survive the expiration or termination of the Contract, but this shall not be construed to mean that Vendor/Contractor's liability does not survive as to other provisions of the Contract.

19. Vendor/Contractor agrees: (a) to comply with all applicable state and federal statutes, executive Orders and Regulations relating to non-discrimination in employment, including the rules, regulations, and relevant orders of the Secretary of Labor; and (b) to furnish all information and reports required by the rules, regulations, and orders of the Secretary of Labor, or pursuant thereto, and to permit access to his books, records, and accounts by Purchaser and the Secretary of Labor for purposes of investigation to ascertain compliance with such rules, regulations, and orders.

20. Vendor/Contractor agrees that if work performed or materials ordered are for a building in which any office of the United States of America is a tenant is located, and this Order is for an amount exceeding $2500.00, Vendor/Contractor shall permit the Controller General of the United States or his duly authorized representative to have access to, and the right to examine any directly pertinent books, documents, papers and records pertaining to this Order until the expiration of three years after final payment of any monies has been made pursuant to the provision of this Order.

21. The Vendor/Contractor shall, at its own expense, defend any and all legal actions (including the filing of any mechanic's liens) brought against the Client and/or Purchaser in connection with this order and shall pay all attorneys' fees and all other expenses and promptly discharge any judgments resulting there from. Vendor/Contractor agrees that if any mechanic's lien is filed against any property served hereunder for work done, Services claimed to have been rendered or materials claimed to have been furnished in connection with or pursuant to this Order, then Vendor/Contractor shall cause such mechanic's lien to be discharged within ten (10) days after filing, at contractor's expense. If Vendor/Contractor fails to comply, the lien may be bonded or discharged by Purchaser or Client at Vendor/Contractor's sole expense.

22. Vendor/Contractor promises and agrees to pay the taxes measured by the wages of its employees required by the Federal Social Security Act and any contributions required by any unemployment insurance laws and hereby accepts the exclusive liability for said taxes and contributions and agrees to indemnify and hold harmless the Client and Purchaser from any responsibility for same. Personnel supplied by Vendor/Contractor will not for any purposes be deemed to be employees or agents of Purchaser or Client and Vendor/Contractor assumes full responsibility for the acts and omissions for its suppliers, agents and employees while performing work under this Order and shall be solely responsible for their supervision and control.

23. Purchaser shall be the sole and exclusive owner of the following, including all intellectual property rights therein: (i) all deliverables, software, data, materials and products owned by

Purchaser as of the date of this Purchase Order; (ii) all deliverables, software, data, materials and products created, developed or acquired by or on behalf of Purchaser (or Affiliate) after the date of this Purchase Order; (iii) all reports and other outputs of the Services which (1) include, incorporate, or are derived from, Purchaser data; (2) are generated through Purchaser's (or an Affiliate's) use of the Services; or (3) are delivered to Purchaser (or an Affiliate) by Vendor/Contractor in connection with the Services; and (iv) all modifications to and derivative works of any of the foregoing set forth in (i) through (iii) above developed by any person or entity (alone or jointly with others).

Vendor/Contractor represents and warrants that all deliverables, software, data, materials and products developed under this Order by Vendor/Contractor on behalf of an Client, whether or not such Order is completed, are the exclusive property of Client, unless such deliverable contains software or technology that is the property of a third party. Vendor/Contractor represents and warrants that Client shall receive good and marketable title to all materials and products developed under this Order, free and clear of all liens, claims, encumbrances and security interest whatsoever of a third party, unless otherwise specified.

24. Vendor/Contractor shall not use and shall prohibit all of its employees, subcontractors, and suppliers from using, Client trade names, trademarks and logos. It is understood and agreed that money damages would not be a sufficient remedy for any breach of this paragraph and that Client shall be entitled to equitable relief including injunction and specific performance as a remedy for any such breach.

25. Vendor/Contractor shall comply with all applicable federal, state and local laws, codes, ordinances, rules and legal requirements affecting any Services provided pursuant to this Purchase Order. This Purchase Order shall be governed in accordance with the laws of the State of Illinois, or in the event of services provided on location to Purchaser Global Occupier Services, the state in which the building served is located or where the services are provided. If, and while Vendor/Contractor and its employees are on Client's premises in connection with the performance of any Services, they shall comply with all of Purchaser's and Client's directives, guidelines, procedures, rules, regulations and policies, including those concerning such matters as working hours (which will be established by Client), and Client's customary security measures. Vendor/Contractor agrees and represents that as the employer of its personnel, it will comply with all requirements of applicable tax and employment laws and with all immigration laws, rules, and regulations and will provide Client and Purchaser only with personnel whose employment eligibility has been verified.

26. Nothing contained herein shall be deemed to create any association, partnership, joint venture or relationship of principal and agent or master and servant or employer and employee between the parties hereto or any affiliates or subsidiaries thereof.

27. COMPLIANCE

(a) Vendor/Contractor Warranties. Neither Vendor/Contractor nor any of its employees, owners, agents, or subcontractors is blocked, debarred, designated, excluded, or sanctioned under laws related to the import and export of goods/technology/services, economic or financial sanctions, trade embargoes, or other restrictions on trade ("Sanctions & Trade Controls").

(b) In connection with performing Services under this Agreement, Vendor/Contractor, its employees, owners, agents, and Subcontractors will comply with all applicable laws ("**Applicable Laws**"), including, but not limited to: (i) Applicable Laws related to anti-bribery or anti-corruption ("**Anti-Corruption Laws**"), including, but not limited to, the U.S. Foreign Corrupt Practices Act and the UK Bribery Act of 2010; and (ii) Applicable Laws related to Sanctions & Trade Controls, including, but not limited to, those administered and enforced by the United States (e.g., U.S. Export Administration Regulations, the International Traffic in Arms Regulations, U.S. Antiboycott Regulations) and the United Kingdom (e.g., as administered and enforced by the Office of Financial Sanctions Implementation). In performing Services under this Agreement, Vendor/Contractor, its employees, owners, agents, and Subcontractors will comply with Cushman & Wakefield's Global Vendor/Supplier Integrity Policy (available at: https://www.cushmanwakefield.com/en/about-us/supplier-management/supplier-policies)..

(c) Vendor/Contractor shall, and shall cause all Vendor/Contractor Personnel to, at all times comply with all applicable federal, state and local laws, codes, ordinances, rules and legal requirements affecting the Services (including, without limitation, laws concerning the use, handling and disposal of hazardous materials, and laws concerning verifying an individual's legal right to work in the United States), as well as Purchaser's and Client's directives, guidelines, procedures, company policies rules, and regulations. If any Vendor/Contractor Personnel will require access to a Client's premises or a Client's equipment, systems, applications or networks, such Personnel must comply with such Client's policies and all applicable laws and regulations while performing Services and may be required to execute a standard resource access agreement acknowledging these obligations as a condition of their receiving such access.

(d) Notice. If Vendor/Contractor becomes aware of any suspected or actual violation of Applicable Laws or Policy, in connection with performance of this Agreement, Vendor/Contractor will promptly notify Purchaser, unless prohibited by law.

28. CONFIDENTIAL INFORMATION AND DATA PROTECTION

(a) Vendor acknowledges that all information disclosed by Purchaser to Vendor for purposes of performing the Services, or which come to the attention of Vendor during the course of performing such Services, constitutes a valuable asset of and is proprietary to Purchaser or Client. Vendor also acknowledges that Purchaser, as a party in the business community, may have fiduciary responsibilities to its Clients to keep its records confidential and proprietary. Vendor shall not disclose said information or knowingly permit Vendor Personnel to disclose said information, to any third party or to any Vendor Personnel not having a specific need-to-know in performing the Services authorized Purchaser.

(b) Vendor further agrees to instruct its personnel, officers and agents not to sell, lease, assign, transfer or reveal to any organization, company or individual any of said information whether oral or written, without the prior written consent of Purchaser, and agrees to take all reasonable steps necessary to ensure fulfillment of this obligation.

(c) In the event that a subpoena or other legal process is served upon Vendor that in any way concerns information disclosed by Purchaser to Vendor, Vendor agrees to notify Purchaser immediately upon receipt of such subpoena or other legal process and will cooperate with Purchaser, at Purchaser's expense, in any lawful effort by Purchaser to contest the legal validity of such subpoena or other legal process. This **Section 28 (Confidential Information)** shall survive the termination or expiration of the Agreement.

29. INFORMATION AND PHYSICAL SECURITY. Vendor shall comply with the Information and Physical Security Terms and Conditions found at: https://www.cushmanwakefield.com/en/privacy-and-security-reference-documentation ("Information and Physical Security Terms and Conditions").

30. GLOBAL PRIVACY REQUIREMENTS. Vendor shall comply with the Global Privacy Requirements, including the Vendor Data Processing Agreement Exhibit found at: https://www.cushmanwakefield.com/en/privacy-and-security-reference-documentation ("Global Privacy Requirements").

31. The liability of Client (including any assignee or successor of Client) shall be limited to Client's interest in the building. Vendor/Contractor acknowledges and agrees that Purchaser is issuing this Purchase Order in its capacity as manager of the property for Client and that Client shall have no liability or obligation to Vendor/Contractor under this Contract.

32. This Purchase Order may include the Ordering Document attached hereto.

33. Audit. Purchaser, its internal and external auditors, Client and any governmental authority shall have the right to audit all Vendor/Contractor books and records, data and systems pertaining to Vendor/Contractor's performance, charges, procedures, security, backup and disaster recovery at any time upon reasonable notice. Vendor will fully cooperate with Purchaser and Client. The right of Purchaser and Client to audit the books and records maintained by Vendor/Contractor shall survive the expiration or termination of this Purchase Order.

34. Client Requirements/Flowdown Provisions. Vendor/Contractor shall promptly implement and comply with, those terms, conditions, policies and procedures that Purchaser is required by its Client to comply with. Purchaser shall have the benefit of all rights, remedies and redress against Vendor/Contractor that Client has against Purchaser with respect to all Flow-Down Provisions.

35. Liens. Vendor/Contractor shall not cause or permit any mechanic's lien or materialmen's liens to be filed against any of Purchaser's or Client's buildings or improvements. Vendor/Contractor shall indemnify, defend, and hold Purchaser and Client harmless against any costs, expenses, and legal fees arising from such mechanic's lien or materialmen's liens filed or maintained by Vendor/Contractor.

36. VENDOR USE OF AI

(a) Definition of AI. "AI" or "Artificial Intelligence" means any form of artificial intelligence or similar technology that enables computers and machines to simulate human intelligence or human-like cognitive abilities, to generate outputs such as content, predictions, recommendations, or decisions based on or in response to the inputs it receives. AI includes: machine learning, deep learning, generative AI, natural language processing, computer vision, Large Language Models (LLM), logic- and knowledge-based approaches, and all other current and future technology within the field of artificial intelligence.

(b) Permitted Use of AI. Other than as expressly set forth in this Purchase Order (including in an order for Purchaser access and use of a platform with AI features or functionality), Vendor shall not, without Purchaser's prior written approval in each instance: (A) engage in any use of AI, including the generation of non-authentic, invented or automatically generated data that are not event generated in the real world ("Synthetic Data") or otherwise in connection to this Agreement; (B) include any Purchaser data or Purchaser materials, or any portion or attributes thereof, in any AI-related designs, databases, or models; or (C) use any Purchaser data or Purchaser materials, or any portion or attributes thereof, to train, or otherwise enhance the capabilities of, any AI (including AI designs, models, or tools) or in the development or enhancement of any AI (including AI designs, models, or tools).

(c) Requesting Approval of Vendor Use in AI. In the event Vendor desires to engage in any use of AI in a manner prohibited by Section 2 above, Vendor shall provide Purchaser a written request for approval, which request shall include a detailed proposal describing the specific AI involved, the purpose and function of the AI, risk assessments conducted for the AI, known potential risks for the use of the AI, mitigation procedures that Vendor will establish and maintain for the use the AI, data used in the AI, data privacy and security impact assessments for use of the AI, audit and testing procedures, and other information reasonably requested by Purchaser.

(d) AI Inputs and Outputs. AI Outputs (as defined below) and other results (including Synthetic Data, content, predictions, recommendations, decisions, insights, and results) arising out of any use of AI to process Purchaser data or Purchaser materials, or any other use of AI ("AI Outputs"), and all data and information supplied by any Purchaser Affiliate, their Clients, or their users, to Vendor either directly through the Services as an input or indirectly through an integration, that is input into or used in any AI engine ("AI Input"), shall be deemed Purchaser data and/or Purchaser materials, as applicable. The AI Outputs and AI Inputs may not be used by Vendor for any purpose other than as necessary to perform the Services for Purchaser. The AI Outputs shall be accurate, complete, and free from material errors or defects.

(e) Compliance.

(i) Vendor represents and warrant that the Vendor, the Services, and its use of AI in or in connection with the Services or deliverables, will comply with all Applicable Laws, rules, statutes, regulations, governmental guidance, and industry and regulatory standards, frameworks, policies, and guidelines, related to AI and use thereof, including relating to ethical, responsible, safe, and/or

secure use of AI, and all privacy and data security laws applicable to the use of data in connection with AI.

(ii) Vendor shall comply with all Purchaser policies and procedures related or applicable to AI.

(iii) Vendor represents, warrants and covenants that (A) any Services or Platforms that use AI will be free from bias, and will not discriminate or deliver discriminatory outputs based on race, color, religion, sex (including pregnancy, sexual orientation or gender identity), national origin, age, disability genetic information or other protected characteristics; and (B) Vendor has implemented, maintains, and adheres to policies and procedures consistent with the highest industry practices and standards relating to the ethical and responsible use of AI, including for (I) developing and implementing AI in a way that promotes transparency, accountability and human interpretability; (II) identifying and mitigating bias in data or in the algorithmic model used in, or to train, teach or improve, Vendor's AI products; (III) management oversight and approval of Vendor staff's use or implementation of AI; and (IV) establish robust AI governance mechanisms, including conducting regular audits and reviews to ensure compliance with laws governing or related to AI.

37. LICENSE GRANT. If Vendor is providing or making available to Purchaser any software, application, solution or platform including but not limited to on a software-as-a-service basis (each, a "Platform") under this Purchase Order, Vendor shall (a) provide Purchaser, its Affiliates, and any persons or entities authorized by Purchaser or its Affiliates ("Authorized Users"), access to and use of the Platforms and all data, outputs and other results arising out of such access and use, (b) provide or make available all related documentation, and (c) provide all associated development, testing, implementation, maintenance and support, and managed hosting services. Vendor hereby grants to Purchaser, its Affiliates, and Authorized Users a non-exclusive license to access and use the Platforms.